4488

Executive Order

No. 4359-A

Repealed

Paragraphs 150, 151, 154, 155, 160 and 168 of the Consular Regulations as established by an Executive Order dated December 19, 1925, are hereby canceled and the following substituted for paragraphs 150, 151, 155, 160 and 168:

150. *Who may issue.*—Passports may be issued in the United States only by the Secretary of State and he may cause them to be granted, issued and verified in foreign countries by diplomatic representatives of the United States and by such consuls general, consuls, or vice consuls when in charge, as may be designated by him, and in the insular possessions of the United States by the chief or other executive officer thereof. No other person shall grant, issue, or verify passports.—*Act of July 3, 1926.*

If any person acting or claiming to act in any office or capacity under the United States, its possessions, or any of the States of the United States, who shall not be lawfully authorized so to do, shall grant, issue, or verify any passport or other instrument in the nature of a passport to or for any person whomsoever, or if any consular officer who shall be authorized to grant, issue, or verify passports shall knowingly and wilfully grant, issue or verify any such passport to or for any person not owing allegiance, whether a citizen or not, to the United States, he shall be imprisoned for not more than one year or fined not more than five hundred dollars, or both; and may be charged, proceeded against, tried, convicted, and dealt with therefor in the district where he may be arrested or in custody.—*R. S. Sec. 4078 as amended by Act of June 14, 1902, 32 Stat. L. 386.*

151. *By diplomatic officers.*—On and after October 1, 1926, only those embassies and legations and other diplomatic missions of the United States specifically authorized to do so by the Department of State will issue passports, except in the absence of a duly authorized consular officer.

155. *Applications.*—All persons who assert a right to receive passports and who desire to secure them while abroad may make application therefor through a consular officer or, in the absence of such, through a diplomatic officer. Each application should contain all the information required by law or regulation and each applicant must take the oath of allegiance. Whenever an application for a passport is made to the Department of State through a diplomatic or consular officer he shall transmit to the Department the original of the application and, where required, the proof of the right to receive a passport.

160. *Expiration of passports.*—The validity of a passport is limited by statute to two years, unless the Secretary of State shall by regulation limit it to a shorter period.—*Act of July 3, 1926.*

168. *Verification, extension and amendment.*—The Secretary of State will prescribe regulations governing the verification, extension, and amendment of American passports by diplomatic and consular officers of the United States.

CALVIN COOLIDGE

THE WHITE HOUSE,
August 3, 1926.

[No. 4488]

GOVERNMENT PRINTING OFFICE